

However, the motion is denied as to Harbinger Group, Inc. Not only has Harbinger Group, Inc. not been served with the motion papers (Proof of Service (6/3/26)), Judgment Creditor establishes only that Harbinger Group, Inc. is merely the parent company of Harbinger Production, Inc. and that Harbinger Group, Inc. provided Harbinger Production, Inc. with some funding. (Decl. of Gabriel, ¶ 8.) A parent corporation is not exposed to liability for the obligations of a subsidiary simply because the parent contributed funds to the subsidiary to assist the subsidiary in meeting its financial obligations and not to perpetuate a fraud. (*Sonora Diamond Corp. v. Superior Court* (2000) 83 Cal.App.4th 523, 539.)

HORMIGAS v. STERLING ASSET MANAGEMENT COMPANY
Case No. CU25-03830

Motion And Motion to Compel Defendant Community Housing Opportunities Corporation to Respond to Plaintiff's Requests for Production of Documents, Set Two; Memorandum of Points and Authorities in Support Thereof; Request for Monetary Sanctions

TENTATIVE RULING

On its own motion, the Court continues this matter to September 22, 2026, at 9:00 a.m. in Department 3 to be heard concurrently with the three Motions to Compel, this matter is deemed submitted.

SWEENEY v. CAL. REG'L WATER QUALITY CONTROL BD., SAN FRANCISCO BAY REGION, ET AL.
Case No. FCS048136

Motion to Enforce Contempt Judgments; Motions to "Compel Production of a Post-Judgment Accounting"

TENTATIVE RULING

Motion to Enforce Contempt Judgment

Parties to appear.

Judge Carringer entered the following orders and judgments of contempt against Judgment Debtor John Sweeney:

- 1) on August 26, 2022 for willful disobedience of the court's May 20, 2022 discovery order, repeated failure to appear for examination, and willful disobedience with the CAO Injunction;

- 2) on March 22, 2023 for failure to provide financial statements in compliance with the court's August 24, 2022 turnover order;
- 3) on March 22, 2023 for continued failure to appear for examination;
- 4) on December 18, 2024 for additional failures to produce failures to produce records, and for selling a boat in March of 2023 on behalf of Point Buckler Club and guns in June of 2024 in violation of a September 2022 turnover order;
- 5) on December 18, 2024 for ongoing failure to produce verified responses and documents in violation of a March 2023 order compelling discovery responses;
- 6) on December 18, 2024 for continued failure to appear for examination; and
- 7) on December 18, 2024 for continued failure to comply with the CAO Injunction.

These orders and judgments are final and conclusive. (Code Civ. Proc. § 1222; *Moffat v. Moffat* (1980) 27 Cal.3d 645, 656.) But, "[o]rdinarily, when one is sentenced to imprisonment for contempt, the imprisonment begins to run at once". (*In re Applicant of Selowsky* (1919) 44 Cal.App. 421, 425.) It appears Judgment Debtor Sweeney served only two days of the concurrent five-day punitive contempt sentence from the March 22, 2023 contempt judgments and did not serve any portions of the coercive contempt sentences.

Since these judgments were entered, years have passed and circumstances have changed. For example, it appears that Point Buckler Island was sold by public auction (see, Acknowledgment of Partial Satisfaction of Judgment), making it unclear whether there can be any further acts within Judgment Debtor Sweeney's power to perform to comply with the CAO Injunction. And, although Judgment Debtor had failed to appear at many of the prior examination hearings, he has personally appeared at recent hearings. Therefore, Judgment Creditor shall appear at the hearing and be prepared to explain its position regarding which contempt judgments still require coercive sentences, and specify the conduct to be performed by (or the documents or information to be obtained from) Judgment Debtor Sweeney, for the Court's consideration.

Motions to "Compel Production of a Post-Judgment Accounting"

The motions to "compel production of a post-judgment accounting" filed by Judgment Debtor John Sweeney and Jennifer Frost are denied. These motions are not authorized by any statute or decisional authority.